

DIRECTORS & OFFICERS LIABILITY — CLAIM / NOTIFICATION FORM

Type of Notification

Tick one (or more if combined):

- ☐ Claim — a written demand or proceeding has been served on an Insured Person
- ☐ Circumstance — facts that may give rise to a Claim (notice on a precautionary basis)
- ☐ Investigation — an Insured Person is the subject of a regulatory or internal investigation
- ☐ Subpoena / Witness Summons issued to an Insured Person

Policy Details

Policy Number: _____

Period of Insurance: _____

Retroactive Date: _____

Limit of Liability — Aggregate (BWP): _____

Limit of Liability — Each Claim (BWP): _____

Self-Insured Retention / Deductible (BWP): _____

Policy Cover Sides (tick all applicable):

- ☐ Side A — direct cover for Insured Persons (no indemnification by Company)
- ☐ Side B — reimbursement of the Company for indemnification of Insured Persons
- ☐ Side C — entity cover (Company itself)
- ☐ Employment Practices Liability extension

Insured Entity

Insured Company (registered name): _____

Company Registration Number: _____

NBFIRA / Regulator License Number (if applicable): _____

Industry / Sector: _____

Registered Address: _____

Company Secretary / Compliance Officer (Name & Contact): _____

Insured Person(s) Against Whom Claim Is Made

Insured Person 1 — Name / Director ID: _____

Position / Role: _____

Date of Appointment: _____

Current or Former Director / Officer (state which): _____

Insured Person 2 — Name / Director ID (if applicable):

Position / Role: _____

Date of Appointment: _____

Current or Former Director / Officer: _____

Additional Insured Persons (attach annexure if more than 2):

Claim Trigger Dates (claims-made policy)

Cover under a claims-made policy depends on: (a) the date the Wrongful Act allegedly occurred, (b) the date the Claim was first made against an Insured Person, and (c) the date Alpha Direct was notified. Provide all three accurately.

Date Wrongful Act Allegedly Occurred (or earliest date of the alleged conduct):

Date Claim First Made Against Insured Person (date of demand letter, summons or formal notice):

Date Insured First Became Aware of the Claim / Circumstance:

Claimant Details

Identity of Claimant (tick all that apply):

- ☐ Shareholder / investor
- ☐ Regulator (NBFIRA, BURS, Competition Authority, BSE, other)
- ☐ Liquidator / business rescue practitioner
- ☐ Employee or former employee
- ☐ Customer / counterparty
- ☐ Creditor
- ☐ Government / criminal prosecution
- ☐ Other (specify)

Claimant Name(s): _____

Claimant's Legal Counsel / Representative (Firm and Contact):

Form of the Claim (tick all that apply):

- ☐ Letter of demand
- ☐ Summons / Statement of Claim filed
- ☐ Subpoena / witness summons
- ☐ Regulator inquiry / investigation notice
- ☐ Criminal charge
- ☐ Internal investigation initiated
- ☐ Other (specify)

Nature of Allegation

Nature of the Wrongful Act alleged (tick all that apply):

- ☐ Breach of fiduciary duty / duty of care
- ☐ Misstatement / misrepresentation in financial statements or disclosures
- ☐ Insolvent / reckless trading
- ☐ Misappropriation of corporate opportunity / conflict of interest
- ☐ Regulatory breach (NBFIRA, BURS, Competition, AML, data protection, listing rules)
- ☐ Employment Practices — wrongful dismissal, discrimination, harassment
- ☐ Negligence / failure of oversight
- ☐ Criminal allegation (fraud, theft, corruption, bribery)
- ☐ Defamation
- ☐ Other (specify)

Brief description of the allegation and the conduct alleged:

Total Quantum / Amount Claimed (BWP, if quantified):

Stage of proceedings (pre-claim, demand, summons, hearing date, judgment):

Court / Forum (court name, regulator, tribunal):

Case / Reference Number:

Defense & Counsel

Engagement of legal counsel is subject to Alpha Direct's prior approval. Use this section to request approval and to disclose any counsel already instructed on a preservation-of-rights basis.

Has counsel been engaged?: ☐ Yes ☐ No Details:

Counsel firm and lead attorney:

Counsel firm contact and rate basis:

Has Alpha Direct's prior consent been obtained?: ☐ Yes ☐ No Details:

Estimated defense costs incurred to date (BWP):

Next pending hearing / response deadline (date):

Has any settlement offer been made or received?: ☐ Yes ☐ No Details:

Settlement offer details (must not be accepted without AD consent):

Co-Defendants & Other Insurance

Are other Insured Persons named as co-defendants?: ☐ Yes ☐ No Details: _____

Names / Director IDs of co-defendants: _____

Is the Insured Company itself named?: ☐ Yes ☐ No Details: _____

Are outside parties (non-Insureds) named?: ☐ Yes ☐ No Details: _____

Names of outside parties: _____

Is there any other insurance that may respond (PI, EPLI, prior tower D&O)?: ☐ Yes ☐ No Details: _____

Other policy / insurer / period / limit: _____

Has this Claim or Circumstance previously been notified to any insurer?: ☐ Yes ☐ No Details: _____

Prior notification reference and insurer: _____

Documents Attached

Tick each document attached. Send certified copies where originals are required by the court.

- ☐ Demand letter / summons / regulatory notice / subpoena
- ☐ Pleadings filed (statement of claim, replying papers)
- ☐ Counsel engagement letter and fee agreement
- ☐ Internal investigation report (if any)
- ☐ Board / Committee minutes referenced in the allegation
- ☐ Audit reports / financial statements referenced
- ☐ Correspondence with claimant or claimant's counsel
- ☐ Insured Person's response / answering affidavit
- ☐ Prior notifications to other insurers (if any)
- ☐ Broker covering letter

Declaration

I/We declare that the foregoing particulars are true and complete in every respect, and that no material information has been withheld.

I/We acknowledge and agree that:

- (a) no admission of liability, settlement, payment, or defense agreement may be made by or on behalf of any Insured Person or the Insured Company without Alpha Direct's prior written consent;
- (b) engagement of legal counsel and incurral of defense costs is subject to Alpha Direct's prior approval, save for emergency steps reasonably necessary to preserve rights;
- (c) Alpha Direct reserves all rights under the policy, including in respect of any conduct exclusions, prior knowledge, or late notification, and acceptance of this notification is without prejudice and not an admission of cover or liability.

I/We hereby assign and subrogate to Alpha Direct all rights of recovery against any third party, to the extent of any indemnity paid by Alpha Direct, save against fellow Insured Persons unless the policy permits.

Signed on behalf of the Insured Entity (CEO, Company Secretary or authorised signatory)

Name: _____

Capacity: _____

Date: _____

Signature & Stamp: _____